

25CHCV02365 25CHCV02365

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C07%2F17%2F2026

Source SHA-256: 8d59c9b0def48410bbbddc6171aa4a59d9c64933d9b67608d46f2fb78ec7bd53

Case Number: 25CHCV02365 Hearing Date: July 17, 2026 Dept: F46

Dept. F-46

Hearing Date: July 17, 2026

Case Number: 25CHCV02365

DEFENDANT FREEWAY TOWING, INC.'S MOTION TO STRIKE
PLAINTIFFS' SECOND AMENDED COMPLAINT

Motion filed on April 24, 2026.

MOVING PARTY: Defendant, Freeway Towing, Inc.

RESPONDING PARTY: Plaintiffs, Fall Creek Armory LLC and
James Rowley

NOTICE: OK

RELIEF REQUESTED: Defendant seeks an order striking the
Second Amended Complaint filed on March 25, 2026 because it was filed after the
amendment deadline and without prior leave of court.

RULING: Motion granted. Plaintiffs are granted five court
days to file and serve a Second Amended Complaint within the scope of the leave
previously granted.

BACKGROUND

On January 16, 2026, the Court sustained in part the demurrer filed by Freeway Towing, Inc. (Defendant) and granted in part Defendant's motion to strike. The Court granted Fall Creek Armory LLC and James Rowley (collectively, Plaintiffs) leave to amend and ordered that any amended complaint be filed and served within thirty days.

Plaintiffs filed a Second Amended Complaint on March 25, 2026, after the amendment deadline had expired. Defendant filed this motion on April 24, 2026. The motion seeks to strike the March 25 pleading because it was untimely and filed without prior leave of court.

On June 2, 2026, the Court granted Plaintiffs relief under Code of Civil Procedure section 473, subdivision (b). The body of the order found that the March 25 Second Amended Complaint had been filed without leave after expiration of the amendment period, stated that the pleading would be stricken, and granted Plaintiffs ten days to file and serve a Second Amended Complaint. The conclusion granted leave to amend but did not expressly direct that the March 25 pleading be stricken. The Register of Actions does not reflect the filing of another Second Amended Complaint after the June 2 order.

DISCUSSION

The Court may strike all or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Code Civ. Proc., § 436, subd. (b).) When a plaintiff fails to file an amended complaint within the time allowed after a demurrer has been sustained with leave to amend, any subsequently filed pleading is subject to a motion to strike. (*Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.)

Here, Plaintiffs filed the March 25, 2026 Second Amended Complaint after expiration of the amendment deadline and before obtaining leave to file it. The June 2 order did not deem that pleading timely filed. The order contemplated that the March 25 pleading would be stricken and that Plaintiffs would file and serve a Second Amended Complaint within the newly authorized period.

The March 25 Second Amended Complaint is therefore subject to being stricken. The June 2 order, however, was ambiguous as to whether Plaintiffs were required to refile the pleading because the directive striking

it appeared in the body of the order but not in the conclusion. A short additional period to amend is warranted.

CONCLUSION

Defendant's Motion to Strike is granted. The Second Amended Complaint filed on March 25, 2026 is stricken.

Plaintiffs shall file and serve a Second Amended Complaint no later than July 24, 2026. The amended pleading shall be limited to amendments authorized by the Court's January 16, 2026 order.

This ruling does not alter the abatement of Fall Creek's claims or the Order to Show Cause re Abatement set for August 4, 2026.